

Court No. - 40

Case :- WRIT - C No. - 30748 of 2023

Petitioner :- Banarasi Lal

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Rahul Kumar Tripathi,Rajesh Kumar Shukla

Counsel for Respondent :- C.S.C.,Udit Chandra

Hon'ble Mahesh Chandra Tripathi,J.

Hon'ble Prashant Kumar,J.

1. Heard learned counsel for the petitioner, Shri Udit Chandra, learned counsel for the respondent nos. 2 to 4 and Shri Devansh Rathore, learned Additional Chief Standing Counsel for the State-respondent.

2. The petitioner has prayed for the following reliefs :-

"(i) issue a writ, order or direction in the nature of mandamus directing the respondents to take appropriate steps in the matter of petitioner by deciding his application dated 03.02.2023 within stipulated time.

(ii) issue a writ, order or direction in the nature of mandamus directing the respondents not to harass the petitioner on the basis of issuing electricity bills after 10.11.2016."

3. Shri Udit Chandra, learned counsel for the respondent nos. 2 to 4, on the instructions states that at present, the petitioner is having the outstanding dues of electricity Rs. 74194/-.

4. Shri Udit, Chandra, learned counsel appearing for respondents submits that there is outstanding dues of electricity over the property in question and as per U.P. Electricity Supply Code 2005 without clearing the same, no new connection can be provided.

5. Confronted with this situation, learned counsel for the petitioner submits that the petitioner is intended to clear the outstanding amount, in case, easy installments are provided as on account of financial miseries, the petitioner cannot deposit the outstanding amount in one stroke and as such, direction may be given to the respondents to accord reprieve of installments and fix easy installments as per Clause 6.14 of U.P. Electricity Supply Code 2005.

6. Such request is not objection by learned counsel for the respondents. He submits that the Department is interested in

realizing the entire due amount and, in case, the petitioner approaches the competent authority afresh by moving an appropriate application, definitely the same would be considered as per law.

7. Be that as it may, no useful purpose would be served in keeping the writ petition pending consideration. The writ petition, on consent, is **disposed of** with observations that, in case, the petitioner moves a fresh application before the Competent Authority under Clause 6.14 of U.P. Electricity Supply 2005 within a week's time, the Authority concerned shall proceed to dispose of the application, so that the petitioner may deposit the due amount and the authority may also process the application for providing the fresh electricity connection.

Order Date :- 25.9.2023

Rama Kant